

AUTO RITE IT
PERSONAL DATA

The Secretary of State for Justice and Security

P.O. Box 20301

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Date

Our reference

May 23, 2023

z2023-00388

Contact person

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Subject

Dutch Data Protection Authority

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Your letter dated

January 23, 2023

Your reference

4424330

Advice regarding the draft amendment to the bill on the regulation of sex work (Sex Work Regulation Act)

Dear Mr. Van der Burg,

In your letter dated January 23, 2023, the Dutch Data Protection Authority (AP) was consulted regarding the draft amendment to the bill on the regulation of sex work (hereinafter: the draft) based on the provisions of Article 36, paragraph 4, of the General Data Protection Regulation (GDPR).

The AP has no comments on the draft.

This does not alter the fact that the AP raised questions in its advice of March 3, 2019 regarding the effectiveness of the licensing requirement and the associated national registration (hereinafter: the bill). This is because, in the opinion of the AP, the licensing requirement for sex workers in vulnerable situations does not yield sufficient improvement and may even be counterproductive. There is a risk that sex workers will choose to work in the unlicensed sector out of fear of losing their privacy and facing stigmatization. The AP advised that the expected effectiveness of the bill should be substantiated in light of this.

The AP notes that the substantiation of the expected effectiveness of the licensing requirement for sex workers is still lacking even after the incorporation of the AP's advice. In the consultation paragraph of the explanatory memorandum to the bill, it is stated that the effectiveness of a measure to gain more insight into the sector has not been investigated. The explanatory memorandum also mentions that municipalities, the police, and the Public Prosecution Service express a strong need for an instrument to gain more insight into the sector in order to combat abuses, and the prostitution license is seen as a suitable instrument for this. The cabinet fully agrees that the impact of the registration of prostitutes is significant, but firmly expects that the law will be effective. Based on this, the cabinet's assessment of the proportionality of the measures differs from that of the AP. On this point, the cabinet feels supported by municipalities, the police, and the Public Prosecution Service.

The AP does not read any substantiation of the effectiveness of the measure in this reasoning.

According to established case law, legislation is only suitable for ensuring the achievement of the relevant objective when its realization is pursued coherently and systematically. The objective of the bill is to address abuses in the entire prostitution sector. Therefore, the justification of the effectiveness must also address the effects of the measure on the entire sector, both the licensed and unlicensed parts, and particularly on the expected effects that are contrary to the objectives of the bill.

Yours sincerely,

Dutch Data Protection Authority,

Aleid Wolfsen
Chairman